

Opinion of the Court

sensitivity.” *Fitzgerald*, 457 U. S., at 750. He must make “the most sensitive and far-reaching decisions entrusted to any official under our constitutional system.” *Id.*, at 752. There accordingly “exists the greatest public interest” in providing the President with “‘the maximum ability to deal fearlessly and impartially with’ the duties of his office.” *Ibid.* (quoting *Ferri v. Ackerman*, 444 U. S. 193, 203 (1979)). Appreciating the “unique risks to the effective functioning of government” that arise when the President’s energies are diverted by proceedings that might render him “unduly cautious in the discharge of his official duties,” we have recognized Presidential immunities and privileges “rooted in the constitutional tradition of the separation of powers and supported by our history.” *Fitzgerald*, 457 U. S., at 749, 751, 752, n. 32.

In *Nixon v. Fitzgerald*, for instance, we recognized that as “a functionally mandated incident of [his] unique office,” a former President “is entitled to absolute immunity from damages liability predicated on his official acts.” *Id.*, at 749. That case involved a terminated Air Force employee who sued former President Richard Nixon for damages, alleging that Nixon approved an Air Force reorganization that wrongfully led to his firing. In holding that Nixon was immune from that suit, “our dominant concern” was to avoid “diversion of the President’s attention during the decision-making process caused by needless worry as to the possibility of damages actions stemming from any particular official decision.” *Clinton*, 520 U. S., at 694, n. 19. “[T]he singular importance of the President’s duties” implicating “matters likely to ‘arouse the most intense feelings,’” coupled with “the sheer prominence of [his] office,” heightens the prospect of private damages suits that would threaten such diversion. *Fitzgerald*, 457 U. S., at 751–753 (quoting *Pierson v. Ray*, 386 U. S. 547, 554 (1967)). We therefore concluded that the President must be absolutely immune from “damages liability for acts within the ‘outer perimeter’ of his official responsibility.” *Fitzgerald*, 457 U. S., at 756.